

maintenance in divorce settlements and herein lies another lacuna in the system. Though the upper limit of maintenance has been increased from a paltry Rs 500 to Rs 5,000 every month, many husbands ignore the decree as there is no agency to enforce its provision. They often make a meagre one-time payment of Rs 15,000 to Rs 20,000 or tell their wives that they would forgo maintenance if they want the dowry back. The Family Court Act says that an appeal against its verdict can only be filed in the high court. Ironically, no appeal can be made against an order or decree if the family court had passed the order with the consent of the parties involved. And this usually happens in cases relating

Raghu simply ignored the verdict but never got any court notice allegedly because the local police were hand in glove with him. Despite civil as well as criminal proceedings, despite intervention by senior police officers, notices have still not been served on Raghu because of non co-operation by the local police. Sangeeta is, meanwhile, bedridden.

Family courts have other limitations too. They have little autonomy, no infrastructure to maintain records and no separate waiting halls for women except the common verandah in front of courtrooms. Besides, till recently the salary for the judges (who hold the rank of additional district judge) used to come from the district magistrate's

blue dupatta, a gold nose ring, vermilion, bangles and red lipstick. His wife won the case and got Rs 7,000 as monthly maintenance.

But not all are as lucky as Veena and the courts get saddled with many bizarre cases. Kirti narrates one such case in which Lucknow executive Rajiv (name changed) came across an advertisement 'Dosti Karo Ge' (*need a friend*) and promptly sent an SMS. He ended up having a physical relationship with the woman he had sent the SMS to. She invited him to her "house" where he posed for photographs with her and her family members. Later, armed with the photographs, the woman started blackmailing Rajiv and



TEDIOUS TRIAL: Family members at a special hearing in Gorakhpur

to maintenance of wives, children and parents under the Code of Criminal Procedure.

Radha Shukla (name changed) had filed a maintenance case 18 years back when her daughter was only four. Her daughter is now married but Radha is still battling for maintenance. Another case is that of Sangeeta who was married to Raghu, a dairy shop owner in Haridwar. There was one habit of her husband which she could not tolerate—smoking. When she objected to this, he pushed her into the Ganga. She survived, filed a divorce case and was granted Rs 1,000 as maintenance.

office and even the principal judge did not have the freedom to make petty purchases without the sanction of the district judge. However, things are improving after Chief Justice Hemant Rao Gokhle of the Allahabad High Court visited the Lucknow family court. He appointed two women judges and is now keen on developing the complex into a model family court.

The court was in the news last year when it heard the case involving the then Inspector General of Police, a colourful D.K. Panda and his wife Veena. The officer, who claimed he was Krishna-devotee Radha, used to dress up as a woman and would attend the court in a yellow salwar-suit with a

when he refused to give in she filed a case for maintenance. The court threw out the case after it was discovered that the woman had similarly blackmailed other men too.

To keep pace with the increase in cases, many counsellors have been hired at the Gorakhpur family court, says counsellor Anita Agrawal. Allahabad, on the other hand, is witnessing an increasing number of separation cases involving old couples. Lawyers blame ego clashes, rising distrust and the impact of television serials, which glamourise extramarital affairs, for causing disharmony and consequent breakups in families.

with bureau reports

COURTHOUSE RAP

BACKLOG: Family courts have cases piling up as they spend time trying to reconcile couples. Shortage of judges adds to the delay in cases.

ENFORCEMENT: Husbands get away by paying a lump-sum in divorce cases and do not pay maintenance.

INFRASTRUCTURE: There is no provision for maintaining records and no separate waiting halls for women.

AUTONOMY: Little independence for judges in matters of salary and petty expenditure.